

CORRESPONDENCE · 6 FEB 2002

Untruths (5)

TYPE	DATE	PARTIES
Argument note	6 Feb 2002	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

"Untruths" note (5) — document in the Collorafi case file · 6 February 2002

Overview: Fifth and last "Untruths" note in the case file: against McDonald's assertion that it "takes all the risks" by investing in the sites, it sets the liquidation of Mr Collorafi's companies and the reasoning of the judgment of 8 March 2000.

Key points

The note recalls that McDonald's asserts, in the expert report written at its request by SEPT and in its first-instance written submissions, that it is the one that "takes all the risks by investing in the sites". It sets two facts against this: following the court decisions, Mr Collorafi's three companies were placed in compulsory liquidation with liabilities of 8 million francs; and the judgment of 8 March 2000 stresses, according to the note, that it was McDonald's that wrongfully terminated the agreements after having driven these companies to collapse through unfair commercial practices.

Significance

The last of the "untruths" notes in the case file: it turns around the argument of the risk borne by the franchisor by recalling the outcome — liquidation and liabilities — suffered by the franchisee.

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Source: bernardcollorafi.org/en/documents/note-untruths-5-collorafi-mcdonalds-liquidation-risks-2002/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original document is authoritative.